January 28, 2025

Wendy Tobias
MARSH & MCLENNAN AGENCY LLC
9171 TOWNE CENTRE DR STE 100
SAN DIEGO, CA 92122-6231

Re: Anaheim Broadcasting Corporation
Enterprise Media Solutions Occurrrence California
Insurance Policy 425647725
Expiration Date 02/01/2026
CNA Customer Number 532060

Dear Wendy,

We are pleased to enclose the proposed insurance policy for Anaheim Broadcasting Corporation. Please review this proposed insurance policy carefully to ensure that it fulfills the agreed-upon specifications. Should you detect any problem, please contact me within five (5) business days of the receipt of this proposed insurance policy to advise us of any concerns or questions. As the surplus lines broker, it is your responsibility to comply with surplus lines stamping requirements prior to releasing this proposed insurance contract to an insured and all other surplus lines laws.

Please note that this proposed insurance policy is issued in consideration of payment of the quoted premium. If this condition is not fulfilled within 30 days of the proposed Effective Date of coverage, coverage will not take effect, and we will close our file on this matter without further notice to you or Anaheim Broadcasting Corporation.

If commissions or other compensation are payable hereunder, your office as insurance producer on this account will comply with all applicable federal and state laws, rules, regulations and/or orders governing disclosure by an agent, broker or producer to an insured or prospective insured of commissions or other compensation.

Please note that CNA offers a broad array of industry leading products. To learn more about these products, please visit our website at www.cnapro.com.

We appreciate the opportunity to do business with Anaheim Broadcasting Corporation and with you. If you should have any comments, questions, or concerns, please do not hesitate to contact me.

Sincerely,

Anahit Gharibian
Underwriting Specialist
Phone: (818) 482-6465
anahit.gharibian@cna.com

POLICY HOLDER NOTICE – CALIFORNIA

IMPORTANT NOTICE ABOUT THE POLICY OF INSURANCE FOR WHICH YOU HAVE APPLIED OR THE CLAIM YOU HAVE SUBMITTED.

READ THE FOLLOWING INFORMATION CAREFULLY.

Any person who knowingly presents false or fraudulent information to obtain or amend insurance coverage or to make a claim for the payment of a loss is guilty of a crime and may be subject to fines and confinement in state prison.

CNA

ENTERPRISE MEDIA SOLUTIONS DECLARATIONS

PLEASE REVIEW THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER. CLAIM EXPENSES ARE WITHIN THE LIMIT OF LIABILITY.

POLICY # 425647725

CUSTOMER # 532060

INSURER: Continental Casualty Company
151 North Franklin Street
Chicago, IL 60606

PRODUCER: MARSH & MCLENNAN AGENCY LLC
Wendy Tobias
9171 TOWNE CENTRE DR STE 100
SAN DIEGO, CA 92122-6231

ITEMS

1.	**NAMED INSURED**	
	NAME: Anaheim Broadcasting Corporation	ADDRESS: 1224 Pacific Lane Del Mar, CA 92014

2.	**POLICY PERIOD**		
	Effective Date:	02/01/2025	(both of which at 12:01 a.m. standard time at the address stated in Item 1 above)
	Expiration Date:	02/01/2026	

3. COVERAGE SCHEDULE

If no limit of liability is shown for Supplementary Payments – Subpoena Assistance coverage, this coverage is not provided by the policy. The Policy Aggregate Limit of Liability shown below is the most the Insurer will pay regardless of the coverages provided.

	Limits of Liability	**Retentions**
Policy Aggregate	$1,000,000	N/A
Media liability (Claims Made)	$1,000,000	$10,000
Supplementary Payments – Subpoena Assistance	N/A	N/A

4.	**POLICY PREMIUM**	$14,000

5.	**NOTICES TO INSURER**	
	CLAIMS:	ALL OTHER NOTICES:
	CNA – Claims Reporting P.O. Box 8317 Chicago, IL 60680-8317 Fax: 866-773-7504 Email: SpecialtyNewLoss@cna.com	CNA Global Specialty Lines Address: Attention: Anahit Gharibian

6. ENDORSEMENTS FORMING A PART OF THIS POLICY AT ISSUANCE:

GSL-7541-CA	11/2004	Cancellation/Non-Renewal Endorsement - California
CNA-73461-XX	04/2013	Blanket Vicarious Liability For Other Entities Endorsement
GSL-48202-XX	10/2011	Claims Made Endorsement

ENTERPRISE MEDIA SOLUTIONS DECLARATIONS

These Declarations, along with the completed and signed **Application**, the Policy, and any written endorsements attached shall constitute the contract between the **Insureds** and the Insurer.

Authorized Representative :

Date: 1/28/2025

![CNA]

ENTERPRISE MEDIA SOLUTIONS OCCURRENCE

PLEASE REVIEW THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER. CLAIM EXPENSES ARE WITHIN THE LIMIT OF LIABILITY.

In consideration of the payment of the premium and in reliance upon all statements made in the **Application** furnished to the Insurer designated in the Declarations, a stock insurance corporation (the "Insurer"), the Insurer and the **Insureds** agree as follows:

I. INSURING AGREEMENT

A. Media Liability

The Insurer will pay on behalf of the **Insured** all sums, in excess of the retention and up to the applicable limit of liability, that the **Insured** shall become legally obligated to pay as **Damages** and **Claim Expenses**, including liability **Assumed Under Contract**, resulting from any **Claim** alleging an **Occurrence** provided that such **Occurrence** happens during the **Policy Period**, alleging that an **Occurrence** resulted in a **Media Wrongful Act**.

B. Supplementary Payments – Subpoena Assistance

While not **Damages** or **Claim Expenses**, the Insurer will reimburse the **Insured Entity** in excess of the retention and up to the Subpoena Assistance Limit set forth in the Declarations for reasonable costs and expenses it incurs in responding to a subpoena it receives during the **Policy Period** for documents or testimony arising from an **Occurrence** that happens during the **Policy Period** provided that:

1. the **Insured Entity** requests in writing the Insurer's assistance in responding to such subpoena;

2. the subpoena arises out of a lawsuit to which the **Insured** is not a party; and

3. the **Insured** has not been engaged to provide advice or testimony in connection with the lawsuit,

Any notice the **Insured** gives the Insurer of such subpoena shall be deemed notification of a potential **Claim** under Section V.B. of this Policy.

II. DEFINITIONS

The following defined words shall have the same meaning throughout this Policy, whether expressed in the singular or the plural.

Application means all signed applications, any attachments to such applications, other materials submitted therewith or incorporated therein, and any other documents submitted in connection with the underwriting of this Policy by the Insurer.

Assumed under Contract means liability of others, for **Matter** furnished by the **Insured**, which the **Insured Entity** agrees to assume under a hold harmless or indemnity agreement, but only to the extent such liability arises out of an **Occurrence**.

Bodily Injury means physical injury of any person (including death), sickness, disease, emotional distress and mental anguish.

Claim means:

A. a written demand for monetary damages or non-monetary relief, including a demand for injunctive or declaratory relief or for the retraction or clarification of **Matter**;

B. a civil proceeding in a court of law or equity or any alternative dispute resolution proceeding;

against an **Insured** alleging an **Occurrence** including any appeal therefrom.

Claim also includes a written request received by the **Insured** to toll or waive a statute of limitations in connection with a **Claim** as defined above.

However, a **Claim** does not include any criminal proceeding or criminal or civil investigation. Nor does **Claim** include any regulatory proceeding.

Claim Expenses mean:

A. fees charged by attorneys designated by the Insurer or by the **Insured** with the written consent of the Insurer;

B. other reasonable and necessary fees, costs and expenses resulting from the investigation, adjustment, defense and appeal of a **Claim** if incurred by the Insurer or by the **Insured** with the written consent of the Insurer including, but not limited to, premiums for any appeal bond, attachment bond or similar bond but without any obligation of the Insurer to apply for or furnish any such bond.

C. reasonable and necessary fees, costs and expenses incurred by the Insured to initiate a declaratory relief action, provided:

1. such action is in response to a **Claim** in litigation received by an **Insured**, or, where such **Claim** is not in litigation, the **Insured** has a good faith belief the claimant will initiate litigation and such **Claim** alleges copyright or trademark infringement and is covered under the policy;

2. the Insurer reasonably believes that such declaratory relief action is likely to mitigate **Damages** and **Claim Expenses** or is strategically advantageous; and

3. the Insurer authorizes and approves such declaratory relief action in advance.

Claim Expenses do not include fees and expenses of independent adjusters or salaries of the Insurer's officials or employees.

In the event the **Insured** is entitled by law to select independent counsel to defend the **Insured** at the Insurer's expense, **Claim Expenses** also include fees the Insurer must pay to such counsel provided that such fees are limited to fees charged in accordance with the rates the Insurer actually pays to counsel the Insurer retains in the ordinary course of business in the defense of similar **Claims** in the community where the **Claim** is being defended;

Contextual Error or Omission means negligence, misstatement or misrepresentation in the content of **Matter.**

Damages mean:

A. settlements, judgments (including any award of pre-judgment and post-judgment interest on a covered judgment), or other amounts for which the **Insured** is legally obligated to pay on account of a covered **Claim**;

B. punitive and exemplary damages and the multiplied portion of multiplied awards. Enforceability of this paragraph shall be governed by such applicable law that most favors coverage for such punitive, exemplary and multiplied amounts.

However, **Damages** do not include:

1. civil or criminal fines, penalties, taxes, sanctions or forfeitures, imposed on an **Insured**;

2. the return of fees, costs and expenses paid or owed to, or charged by, any **Insured**, no matter whether claimed as restitution of specific funds, financial loss, set-off amounts or payments in the form of service credits or coupons or other non-cash consideration;

3. the **Insured's** production costs, or the **Insured's** cost of reprinting, recalling, recovering, shipping, mailing, correcting, reprocessing, restoring, repairing, replacing, or reproducing erroneous, damaged or lost tangible property or **Matter**;

4. any amounts assessed as royalty or license fees;

5. any amount for which an **Insured** is absolved from payment by reason of any covenant, agreement or court order;

6. plaintiff's attorney fees or expenses associated with items **1.** through **5.** above.

Domestic Partner means any spouse and any person qualifying as a domestic partner under any federal, state, foreign or other law (including common law), statute or regulation or under the **Insured Entity's** employee benefit plans.

ERISA or any Similar Act means the Employee Retirement Income Security Act of 1974, as amended, or any similar common or statutory law of the United States, Canada or their states, territories or provinces or any other jurisdiction anywhere in the world.

Executive Officer means:

A. any duly elected or appointed Chief Executive Officer, Chief Financial Officer, Chief Information Officer, Chief Security Officer, Chief Risk Officer, Chief Legal Officer, Risk Manager, General Counsel, in-house attorney designated to be in charge of litigation, or the functional equivalent of any of the foregoing, of the **Named Insured**;

B. an official in an **Insured Entity** organized and operated in a **Foreign Jurisdiction** who is holding a position that is equivalent to an executive position listed in **A.** above. **Foreign Jurisdiction** means any jurisdiction, other than the United States or any of its territories or possessions.

Insured means the **Insured Entity** and:

A. any natural person who was, is or becomes an employee (including leased and temporary employees), director, officer, trustee, manager, member or partner of the **Insured Entity,** but solely with respect to an **Occurrence** committed within the scope of such individual's duties on behalf of the **Insured Entity**;

B. any natural person independent contractor of the **Insured Entity,** but solely with respect to an **Occurrence** committed within the scope of such individual's duties on behalf of the **Insured Entity**;

C. any natural person of an **Insured Entity** organized and operated in a **Foreign Jurisdiction** who is holding a position that is equivalent to an executive position listed in **A.** above.

Insured Entity means the **Named Insured** and any **Subsidiary** including any such entity:

A. as a joint venturer, but only with respect to such **Insured Entity's** interest in such joint venture;

B. as a debtor in possession under United States bankruptcy law or an equivalent status under the law of any other country.

IT Provider means any third party entity which provides:

A. hosted computer resources including "cloud computing" to the **insured entity**; or

B. information technology services required by the **Insured Entity** to operate a **Network** under such entity's ownership, operation, or control, pursuant to a written contract between such entity and such **Insured Entity**. **IT Provider** does not include any **Insured Entity**, any public utility, internet service provider, or securities exchange.

Management Control means owning interests representing more than 50% of the voting, appointment or designation power for the selection of a majority of, or having the right, pursuant to written contract or the by-laws, charter, operating agreement or similar documents, to elect, appoint or designate a majority of the Board of Directors of a corporation; the management committee members of a joint venture; or the members of the management board of a limited liability company, the general partners of a limited partnership or the partnership managers of a general partnership or the **Foreign Jurisdiction** equivalent of any such entity.

Matter means any content regardless of its nature or form.

Media Wrongful Act means any actual or alleged act, error or omission arising directly out of an **Occurrence**, including but not limited to, any actual or alleged:

A. any form of defamation or other tort related to disparagement or harm to the character, reputation or feelings of any person or organization, including but not limited to libel, slander, product disparagement or trade libel;

B. any form of invasion, infringement or interference with rights of privacy or publicity, including but not limited to false light, public disclosure of private facts, intrusion and commercial appropriation of name or likeness;

C. wrongful entry or eviction, trespass, eavesdropping or other invasion of the right of private occupancy;

D. false arrest, detention or imprisonment, abuse of process or malicious prosecution;

E. infringement of title, slogan, logo, trademark, trade name, trade dress, service mark or service name;

F. infringement of copyright or any plagiarism, violation of moral rights (droit moral) or passing off, piracy, misappropriation of ideas under implied contract or other misappropriation of property rights, ideas or information;

G. negligent or intentional infliction of emotional distress, outrage or outrageous conduct, or any prima facie tort; or

H. **Contextual Error or Omission**.

Named Insured means any entity named as such in the Declarations.

Network means any computers, all peripheral or integrated storage, communications input or output devices (including mobile devices), or related network or operating systems, application software or website that are:

A. owned, operated by, controlled by or leased by an **Insured Entity**; or

B. under the ownership, operation, or control of an **IT Provider**, or operated on behalf of, or for the benefit of, an **Insured Entity** by an **IT Provider**.

Occurrence means:

A. the gathering, acquiring, obtaining, researching, developing, writing, editing, preparing, producing, filming, videotaping or recording of **Matter** by the **Insured** for the purpose of disseminating or uttering **Matter**;

B. the dissemination or utterance of **Matter** by the **Insured**, through any medium and by any means, including:

1. publishing, printing, advertising, marketing, promoting or exhibiting;

2. broadcasting, telecasting, webcasting or cablecasting;

3. syndicating, selling, leasing, licensing, distributing, serializing or releasing;

4. public appearances or performances;

5. blogging, tweeting or other forms of online, digital or electronic dissemination.

Policy Period means the period from the effective date of this Policy to the Policy expiration date stated in the Declarations, or its earlier cancellation date.

Pollutants means any substance exhibiting hazardous characteristics as is or may be defined or identified on any list of hazardous substances issued by the United States Environmental Protection Agency or any state, local or foreign counterpart. **Pollutants** also means, without limitation, any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals or waste (including materials to be recycled, reconditioned or reclaimed), as well as any air emission, odor, waste water, oil or oil products, infectious or medical waste, asbestos, or asbestos products.

Property Damage means:

A. physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or

B. loss of use of tangible property that is not physically damaged which is caused by an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

Tangible property does not include electronic data. As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

Related Occurrence means all **Occurrences** that have as a common nexus any fact, circumstance, situation, event, transaction, cause or series of causally or logically connected facts, circumstances, situations, events, transactions or causes.

Subsidiary means any entity in which the **Named Insured** has **Management Control** directly or indirectly through one or more other **Subsidiaries**:

A. on or before the effective date of this Policy;

B. after the effective date of this Policy by reason of being created or acquired by the **Insured Entity** after such date, if and to the extent coverage with respect to the entity is afforded pursuant to Section **V. CONDITIONS,** paragraph **J. Coverage for New Subsidiaries**.

Takeover means:

A. the acquisition of **Management Control** of the **Named Insured** by another entity or person, or group of entities or persons acting in concert;

B. the merger of the **Named Insured** into another entity such that the **Named Insured** is not the surviving entity; or

C. the consolidation of the **Named Insured** with another entity.

Unfair Competition means the misappropriation or misuse of another party's intellectual property rights in **Matter**.

III. EXCLUSIONS

This Policy does not apply to any **Claim**:

A. Bodily Injury/Property Damage

based upon or arising out of any actual or alleged **Bodily Injury** or **Property Damage**, except that this exclusion shall not apply to:

1. allegations of emotional distress or mental anguish of any person;

2. **Bodily Injury** or **Property Damage** caused by a **Contextual Error or Omission**;

B. Claims by Insureds

by or on behalf of any **Insured** in any capacity provided, however that this Exclusion shall not apply to any **Claim**:

1. that is in the form of a crossclaim, third-party claim or otherwise for contribution or indemnity which is part of and results directly from a **Claim** which is not otherwise excluded under this Policy;

2. brought or maintained by or on behalf of a bankruptcy or insolvency trustee, examiner, liquidator, receiver or rehabilitator for an **Insured Entity** or any assignee of such trustee, examiner, liquidator, receiver or rehabilitator;

C. Contractual Liability

for any actual or alleged liability of others assumed by an **Insured** under any written contract or agreement; or for an **Insured's** actual or alleged liability under any written contract or agreement, except that this exclusion does not apply to:

1. liability that would have existed in the absence of such contract or agreement;

2. liability **Assumed under Contract;**

3. any actual or alleged agreement between the **Insured** and the source of **Matter** supplied to the **Insured** regarding:

a. the confidentiality to be afforded to such source or such **Matter**;

b. the ownership or exercise of rights in any such **Matter**;

4. any alleged failure to attribute authorship or provide credit under any agreement;

D. Deliberate Acts

based upon or arising out of any dishonest, fraudulent or criminal act or omission, commingling, misappropriation or misuse of funds, or intentional wrongdoing by or on behalf of an **Insured**. The Insurer shall pay **Claim Expenses** of such **Claims** unless or until a final judgment, ruling or other finding of fact in any proceeding establishes that such act, omission, commingling, misappropriation, misuse or violation was committed. If such act, or such commingling, misappropriation, misuse or violation is so determined to have been committed, the **Insured** will reimburse the Insurer for all **Claim Expenses** paid. The Insurer will not defend any criminal act which was the subject of a criminal prosecution in which the **Insured** was found guilty or pleaded guilty, *nolo contendere* or no contest. Criminal proceedings are not covered under this Policy regardless of the allegations made against any **Insured**.

Provided, however, this exclusion shall not apply to any such act if an attorney for the **Insured Entity** approves of such act in advance based upon a good faith belief that such act is protected by the First Amendment to the United States Constitution or any similar law of another jurisdiction;

For purposes of determining the applicability of this exclusion:

1. the facts pertaining to and knowledge possessed by any natural person **Insured** shall not be imputed to any other natural person **Insured**; and,

2. only facts pertaining to and knowledge possessed by any **Executive Officer** shall be imputed to the **Insured Entities**;

E. ERISA or any Similar Act

for any actual or alleged violation of the responsibilities, obligations or duties imposed upon fiduciaries by **ERISA or any Similar Act**;

F. Employment Related Claims

made by or on behalf of any former, current or prospective employee of and **Insured Entity** based upon or arising from the employment relationship or the nature, terms or conditions of employment, provided, however, that this exclusion does not apply to any **Claim** alleging negligent supervision of an employee when alleged in conjunction with any other **Occurrence** that is otherwise covered under this Policy.

G. False Advertising

based upon, arising from or in consequence of any actual or alleged false advertising, or any actual or alleged unfair or deceptive trade practices, with respect to the advertising or sale of the **Insured's** own goods, publications or services.

Notwithstanding the foregoing and subject to limits of liability set forth in the declarations, this exclusion does not apply to any **Claim** for any actual or alleged false advertising or unfair or deceptive trade practices if such allegations are alleged in conjunction with any actual or alleged:

a. defamation or other tort related to disparagement or harm to the character, reputation or feelings of any person or organization, including but not limited to libel, slander, product disparagement or trade libel;

b. invasion, infringement or interference with rights of privacy or publicity, including but not limited to false light, public disclosure of private facts, intrusion and commercial appropriation of name or likeness;

c. infringement of title, slogan, logo, trademark, trade name, trade dress, service mark or service name; or

d. infringement of copyright or any plagiarism, violation of moral rights (droit moral) or passing off, piracy, misappropriation of ideas under implied contract.

H. Injunctive Relief

for the cost of any non-monetary relief, including without limitation any costs associated with compliance with any injunctive relief of any kind or nature imposed by any judgment or settlement. However, the Insurer shall provide a defense for any **Claim** seeking injunctive relief. Such defense will not waive any of the Insurer's rights under this Policy;

I. Licensing and Ownership of Matter

by any joint venturer or on behalf of such party based upon or arising out of ownership disputes relating to **Matter** supplied;

J. Matter Related to Public Offerings/Sale of Securities

based upon or arising out of any actual or alleged misrepresentation of **Matter** in connection with:

1. the public offer, sale, offer to sell, prospectus, solicitation or distribution of securities issued by an **Insured**;
2. the actual or alleged violation of any federal, state, local or provincial statute relating to securities or any rules or regulations promulgated thereunder;
3. any securities filing with the Securities and Exchange Commission.

K. Over-redemption

based upon or arising out of price discounts, prizes, awards, coupons or any other valuable consideration given in excess of the total contracted or expected amount;

L. Owned Entity

by any entity that is not an **Insured** under this Policy, if at the time of the **Occurrence** giving rise to such **Claim**:

1. any **Insured** controlled, owned, operated or managed such entity; or
2. any **Insured** was an **Executive** or employee of such entity;

For the purpose of this exclusion, a 5% or more owner of the voting stock of a publicly held corporation or a 40% or more owner of the voting stock of a privately held corporation shall be deemed to own such entity;

M. Patent Infringement

based upon or arising out of actual or alleged infringement of patent;

N Professional Services

based upon or arising out of any actual or alleged professional or consulting services performed for others, including services for which an active professional license, certification, or other authorization is required to be held by the person or entity performing such service pursuant to law or regulation governing the practice of such profession, or pursuant to the rules of a professional organization with disciplinary authority over the practice of such profession.

O. Pollution

based upon or arising out of any actual or alleged professional or consulting services performed for others, including services for which an active professional license, certification, or other authorization is required to be held by the person or entity performing such service pursuant to law or regulation governing the practice of such profession, or pursuant to the rules of a professional organization with disciplinary authority over the practice of such profession.

P. Prior Notice

based upon or arising out of an **Occurrence** that, prior to the inception date of this Policy, was the subject of any notice given under any policy of which this Policy is a direct or indirect renewal or replacement;

Q. Securities/Investment Claims

based upon or arising out of any actual or alleged:

1. filing of any registration statement under the Securities Acts of 1933, or the Securities Exchange Act of 1934, any State Blue Sky Law, or any other state or local securities law;

2. violation of the Investment Advisers Act of 1940, the Securities Act of 1933, the Securities and Exchange Act of 1934, rules or regulations of the Securities Exchange Commission under either or both acts, similar securities laws or regulations of any state, or any laws of any state relating to any transaction arising out of, involving, or relating to the public offering of securities;

R. Unfair Trade Practices

based upon or arising out of any actual or alleged:

1. **Unfair Competition**, price fixing, restraint of trade or deceptive trade acts or practices;

2. violation of any federal, state, or local statute, ordinance, or regulation, addressing or governing unfair competition, price fixing, restraint of trade or any other violation of antitrust laws, including, but not limited to, the Sherman Act, the Clayton Act, the Robinson-Patman Act, all as amended and any rules or regulations promulgated pursuant thereto, as well as any other similar federal, state, local, provincial, or foreign law.

However, paragraph 1. of this Exclusion does not apply to any actual or alleged **Unfair Competition** if alleged in connection with any other acts enumerated in paragraphs **A.** through **F.** of the definition of **Media Wrongful Act.**

S. Unsolicited Communication

based upon or arising out of any actual or alleged:

1. violation of any federal, state or local anti-spam statute or regulation, including the CAN-SPAM Act of 2003;

2. violation of any federal, state or local statute or regulation prohibiting the dissemination of unsolicited electronic communications to multiple third parties, including any violation of the Telephone Consumer Protection Act of 2001;

T. Virus/Delay/Infection

based upon or arising out of any actual or alleged:

1. access to a **Network** by an unauthorized person

2. use of any **Network** in an unauthorized manner;

3. transmission of malicious code or virus to a **Network**;

4. or denial of service attack on a **Network**.

IV. LIMITS OF LIABILITY/RETENTION

A. Policy Aggregate

The amount set forth as the Policy Aggregate Limit of Liability in the Declarations shall be the maximum aggregate limit of liability of the Insurer for all **Damages** and **Claim Expenses** under this Policy. The limits of liability set forth in paragraph B. and C. of this Section are subject always to this Policy Aggregate.

B. Each Occurrence Limits of Liability

The amount set forth in the Declarations, in the Coverage Schedule, is the limit of liability for all **Damages** and **Claim Expenses** for each **Occurrence**.

C. Supplementary Payments – Subpoena Assistance Limit of Liability

The amount set forth in the Declarations is the limit of liability for all costs and expenses the Insurer incurs under Section I. B of this Policy.

D. Retentions

1. The retentions set forth in the Declarations shall apply for each **Occurrence.** The Insurer shall pay **Damages**, **Claim Expenses** and costs and expenses arising under Section I. B. of this Policy in excess of the applicable retention as such sums becomes due and payable to the **Insureds**.

2. The Insurer's obligation to pay **Damages**, **Claim Expenses** or costs and expenses arising under Section I. B. of this Policy is in excess of the applicable retention. The Insurer will have no obligation to pay all or any portion of the applicable retention. Should the Insurer, in its sole discretion, pay any retention, then the **Named Insured** shall have the obligation to reimburse the Insurer for such amounts.

3. In the event more than one retention applies, the maximum total retention amount applicable shall be the highest of such applicable retentions.

E. Related Occurrences

1. All **Related Occurrences** shall be deemed to be one **Occurrence** that happened on the date of the first dissemination or utterance, or, if there is no dissemination or utterance, on the first date of the activity giving rise to a **Claim.**

2. If an **Occurrence** first happened or, pursuant to paragraph 1 above is deemed to have first happened, prior to the first policy issued by the Insurer or any renewal of this Policy in a continuous series of renewals, then the Insurer shall only be liable for that portion of **Damages** and **Claim Expenses** fairly attributable to such **Occurrence** happening during the first policy issued by the Insurer or any renewal of such Policy in a continuous series of renewals The Insurer's Limits of Liability and retention applicable to the portion of **Damages** and **Claim Expenses** attributable to such **Occurrence** is the Insurer's Limits of Liability and retention for the policy period in which such **Occurrence** first happened.

3. If an **Occurrence** first happens during the **Policy Period**, all **Related Occurrences** happening during the **Policy Period** or any renewal of this Policy in a continuous series of renewals shall be subject to the Limits of Liability and retention of the policy period in which the earliest **Occurrence** happened.

4. If an **Occurrence** first happens during the **Policy Period** and continues after the end of the this **Policy Period** or the end of any policy period in a continuous series of renewals of this Policy with the Insurer, then the Insurer shall only be liable for that portion of **Damages** and **Claim Expenses** fairly attributable to the **Occurrences** happening during this **Policy Period** and any such renewal policy periods. The Limits of Liability and retention applicable to such **Occurrence** and all such **Related Occurrences** are as set forth in paragraph 2 above.

F. Multiple Occurrences, Insureds, Claims and Claimants

The Limits of Liability shown in the Declarations and subject to the provisions of this Policy is the amount the Insurer will pay for **Damages** and **Claim Expenses** regardless of the number of **Occurrences, Insureds**, **Claims** made or persons or entities making **Claims**.

G. Exhaustion of Limits

The Insurer shall not be obligated to investigate, defend, pay or settle, or continue to investigate, defend, pay or settle a **Claim** after the applicable limit of liability has been exhausted by payment of **Damages, Claim Expenses** or any payments made under Section **I. B. Subpoena Assistance**, or any combination thereof. In such case, the Insurer shall have the right to withdraw from the further investigation, defense, payment or settlement of such **Claim** by tendering control of said investigation, defense or settlement of the **Claim** to the **Insured**.

V. CONDITIONS

A. Defense of Claims/Settlement

1. Duty to Defend

The **Named Insured** shall have the option to defend any **Claim** or to assign the defense of any **Claim** to the Insurer in writing within 30 days of receiving notice of such **Claim**. The **Named Insured's** election to defend the **Claim** or tender the defense of the **Claim** to the Insurer shall not waive or modify the Insured's duty pursuant to Section V. B. 1. of this Policy.

2. Insured's Defense of Any Claim

If the **Insureds** assume the defense of any **Claim**, the Insurer will have no obligation to assume defense of such **Claim**, but shall be entitled to effectively associate in the defense and the negotiation of such **Claim**.

3. Insurer's Defense of Any Claim

If the **Named Insured** tenders the defense to the Insurer, the Insurer shall have the right and duty to defend in the **Insured's** name and on the **Insured's** behalf a **Claim** covered by this Policy even if any of the allegations of the **Claim** are groundless, false or fraudulent. In such case, the Insurer shall have the right to appoint counsel and to make such investigation and defense of a **Claim** as is deemed necessary by the Insurer. If any such **Claim** is subject to arbitration or mediation, the Insurer shall be entitled to exercise all of the **Insured's** rights in the choice of arbitrators or mediators and in the conduct of an arbitration or mediation proceeding.

The **Named Insured** shall have the right to effectively associate with the Insurer in the defense of any **Claim**, including, but not limited to, negotiating a settlement, subject to the provisions of this Section V. 4. The Insurer shall not, however, be obligated to defend any **Claim** after the applicable limit of liability has been exhausted.

However, the **Insured Entity** shall have full discretion to retract or clarify all **Matter**.

4. Admission of Liability, Settlement, Consent

The **Insureds** shall not admit or assume any liability, consent to any judgment, agree to any settlement or make any settlement offer without the Insurer's prior written consent, such consent not to be unreasonably withheld.

The Insurer shall not be liable for any **Damages** and **Claim Expenses** incurred by an **Insured** to the extent the **Damages** and **Claim Expenses** results from such **Insured** admitting liability, consenting to any judgment, agreeing to any settlement or making any settlement offer without the Insurer's prior written consent. The **Insureds** agree that they shall not knowingly take any action which increases the Insurer's exposure for **Damages** and **Claim Expenses** under this Policy.

Notwithstanding the above, if the **Insureds** are able to settle all **Claims** which are subject to a single Retention for an aggregate amount, including **Claim Expenses**, not exceeding such Retention, the Insurer's consent shall not be required for the settlement of such **Claim**.

The Insurer shall not settle any **Claim** without the prior consent of the **Named Insured**.

5. **Reimbursement of Claim Expenses**

   Solely with respect to those **Claims** handled under Section **V. CONDITIONS** paragraph **A. 3.**, if the Insurer defends a **Claim** that is determined to not be covered, in whole or in part, under the terms of this Policy, the Insurer specifically reserves the right to seek reimbursement of that portion of **Claim Expenses** incurred in connection with the defense of the uncovered portion of such **Claim**;

6. **Conditions for Advancement of Claim Expense and Allocation of Insured and Uninsured Loss**

   Solely with respect to those **Claims** handled under Section **V. CONDITIONS** paragraph **A. 2**, the following provisions apply:

   a. The Insurer, on behalf of the **Insureds**, shall advance **Claim Expenses** no later than ninety (90) days after the receipt by the Insurer of such defense bills in excess of the applicable retention. However, if the **Insureds** and the Insurer cannot, after exerting their best efforts, agree on an allocation of insured and uninsured **Claim Expenses**, the Insurer then shall advance the percentage of **Claim Expenses** which the Insurer states to be fair and proper until a different allocation is agreed upon or determined pursuant to the provisions of this Policy and applicable law.

   b. If a **Claim** made against the **Insureds** includes both covered and uncovered matters or if a **Claim** is made against **Insureds** who are extended coverage therefor and others who are not extended coverage therefor, the **Insureds** agree that there must be an allocation between insured and uninsured loss incurred by the **Insured**. The **Insureds** and the Insurer shall exert their best efforts to agree upon a fair and proper allocation between insured and uninsured loss.

B. Notice of Claims/Circumstances

1. **Notice of Claim/Circumstances**

   The **Insureds**, as a condition precedent to the obligations of the Insurer under this Policy, shall give written notice to the Insurer as soon as reasonably practicable after an **Executive Officer** becomes aware:

   a. of any **Claim**;

   b. of the **Insureds'** receipt of any written notice, advice or threat that any person or organization intends to bring a **Claim** against an **Insured** as a result of an **Occurrence**. Such notice to the Insurer shall include, to the extent possible:

      i. the allegations anticipated as the basis of a potential **Claim** and the names of any potential claimants;

      ii. the identity of the specific **Insureds** allegedly responsible for such **Occurrence**;

      iii. the consequences which have resulted or may result from such **Occurrence**;

      iv. the nature of the potential monetary damages or non-monetary relief which may be sought in consequence of such **Occurrence**;

      v. the circumstances by which **Insureds** first became aware of such specific facts and circumstances.

2. To Whom Notices are Sent

The **Insureds** shall give written notice to the Insurer under this Policy as specified in the Declarations. If mailed, the date the Insurer receives such notice shall constitute the date such notice was given. Proof of mailing shall be sufficient proof of notice.

C. Cancellation

1. Insurer's Right to Cancel

The Insurer shall not cancel this Policy except for non-payment of any premium when due. The Insurer shall provide to the **Named Insured** written notice of such cancellation stating when, not less than fifteen (15) days thereafter, such cancellation shall be effective, except that non-payment of premium due at inception of this Policy will result in the policy being cancelled effective as of the inception date.

2. Named Insured's Right to Cancel

The **Insureds** grant the exclusive authority to cancel this Policy to the **Named Insured**. The **Named Insured** may cancel this Policy by providing the Insurer written notice stating when thereafter such cancellation shall be effective. The mailing or delivery of such notice shall be sufficient. The unearned premium shall be computed on a pro-rata basis.

D. Territory

Coverage shall apply to **Claims** made and **Occurrences** committed anywhere.

E. Application

The **Insureds** represent and acknowledge that the statements contained in the **Application** and any materials submitted or required to be submitted therewith (which shall be maintained on file by the Insurer and be deemed attached to and incorporated into this Policy as if physically attached), are true and accurate and:

1. are the basis of this Policy and are to be considered as incorporated into and constituting a part of this Policy; and

2. shall be deemed material to the acceptance of this risk or the hazard assumed by the Insurer under this Policy.

This Policy is issued in reliance upon the truth and accuracy of such representations. In the event the statements, representations or information in the **Application** contain any misrepresentation or omission which materially affects either the acceptance of the risk or the hazard assumed by the Insurer under this Policy, this Policy shall be void from inception as to any **Insured** who knew as of the effective date of this Policy the facts that were misrepresented or omitted, regardless of whether such person knew of such untruthful disclosure in the **Application**. For purposes of this paragraph, the knowledge of any natural person **Insured** shall not be imputed to any other natural person **Insured** and only the knowledge of an **Executive Officer** or any person whose signature appears on the **Application** shall be imputed to the **Insured Entity**.

F. Other Insurance

The Insurer will have no duty to defend any **Claim** that any other insurer has a duty to defend. If no other insurer defends, the Insurer will undertake to do so; but it will be entitled to the **Insured's** rights against all those other insurers. This Policy applies to the **Damages** or **Claim Expenses** that exceed the available limit of liability and any self insured retentions or deductible amounts of any other insurance available to the **Insured**. If there is such other insurance covering the same **Damages** or **Claim Expenses**, the Insurer will pay only for the amount of covered **Damages** or **Claim Expenses** in excess of the amount due from that other insurance, but it will not pay more than the applicable Limit of Insurance. This paragraph does not apply to any other insurance that was bought specifically to apply in excess of the Limits of Liability shown in the Declarations of this Policy.

G. Estates, Legal Representatives and Domestic Partners

The estates, heirs, legal representatives and any **Domestic Partner** of a natural person **Insured** shall be considered **Insureds** under this Policy; provided, however, coverage is afforded to such estates, heirs, legal representatives and **Domestic Partners** only for a **Claim** arising solely out of their status as such and, in the case of a **Domestic Partner**, where such **Claim** seeks **Damages** from marital community property, jointly held property or property transferred from such **Insured** to the **Domestic Partner**. No coverage is provided for any act, error or omission of an estate, heir, legal representative or **Domestic Partner**. All terms and conditions of this Policy, including without limitation the retention, applicable to **Damages** or **Claim Expenses** incurred by the **Insured** shall also apply to **Damages** and **Claim Expenses** incurred by such estates, heirs, legal representatives, assigns and **Domestic Partners**.

H. No Action Against Insurer

No action shall be taken against the Insurer unless, as a condition precedent, there shall have been full compliance with all the provisions of this Policy nor until the amount of the **Insureds** obligation to pay shall have been finally determined either by final and nonappealable judgment against the **Insureds** after trial or by written agreement of the **Insureds**, the claimant and the Insurer.

No person or organization shall have any right under this Policy to join the Insurer as a party to any **Claim** against the **Insureds** to determine the **Insureds** liability, nor shall the Insurer be impleaded by the **Insureds** or their legal representatives in any such **Claim**.

I. Assignment of Interest

Assignment of interest under this Policy shall not bind the Insurer unless the Insurer's consent to such assignment is endorsed to this Policy.

J. Coverage for New Subsidiaries

1. Other than an entity described in paragraph 2. below, if, after the effective date of this Policy the **Insured Entity** first has **Management Control** of any entity then such entity and its subsidiaries, directors, officers, trustees, managers, members, partners or employees who otherwise will thereby become an **Insured**, shall be covered under this Policy, subject to its terms and conditions.

2. If, after the effective date of this Policy, the **Insured Entity** first has **Management Control** of an entity where the total revenues (as reflected in the most recent audited consolidated financial statements of such entity and the **Insured Entity**) exceeds fifteen percent (15%) of the combined total revenues of all **Insured Entities**, as of the inception date of this Policy, then the Insurer, at its sole option upon submission of such information as the Insurer may require, and payment of any additional premium or amendment of the provisions of the Policy, may agree to provide coverage for such entities and its subsidiaries, directors, officers, managers, members, partners or employees.

K. Change of Status of Insureds

1. Takeover of the Named Insured

In the event of a **Takeover** of the **Named Insured**, coverage under this Policy shall continue until this Policy is otherwise terminated, but only with respect to **Claims** resulting from an **Occurrence** that happened before the effective date of the **Takeover**, unless:

a. the Insurer is notified in writing of the **Takeover** prior to the **Takeover** effective date and agrees in writing to provide coverage for an **Occurrence** happened on or after such effective date, and

b. the **Named Insured** accepts any additional terms, conditions and exclusions and pays any additional premium charge required by the Insurer.

2. Cessation of Subsidiary

If any organization ceases to be a **Subsidiary**, coverage under this Policy or any renewal of this Policy, shall continue until this Policy is otherwise terminated, but only with respect to **Claims** for an **Occurrence** happening before the effective date of such cessation, unless:

a. the Insurer is notified in writing of such cessation prior to the effective date thereof and agrees in writing to provide coverage for an **Occurrence** that happened on or after such effective date, and

b. the **Insured Entity** accepts any special terms, conditions and exclusions and pays any additional premium charge required by the Insurer.

L. Subrogation and Recovery

To the extent it pays any **Damages** or **Claim Expenses**, the Insurer shall be subrogated to all the **Insureds** rights of recovery therefor, including without limitation an **Insureds** right to indemnification or advancement from the **Insured Entity**. The **Insureds** shall execute all papers necessary to secure such rights, including executing any documents necessary to enable the Insurer effectively to bring suit in their name, and shall take no action which impairs the Insurer's rights of subrogation or recovery.

M. Notices to the Named Insured

Any notices to the **Named Insured** under this Policy shall be provided to the **Named Insured** at the last known address and to its last known insurance agent or broker. If properly mailed to the **Named Insured** at such address, the date of mailing shall constitute the date such notice was given.

N. Changes

Notice to or knowledge possessed by any agent or other person acting on behalf of the Insurer shall not effect a waiver or a change in any part of this Policy or stop the Insurer from asserting any right under the provisions of this Policy, nor shall the provisions be waived or changed except by written endorsement issued to form a part of this Policy.

O. Insured Authorization

The **Insureds** agree that the **Named Insured** will act on behalf of the **Insureds** with respect to giving of all notices to the Insurer (except notices provided in Section **V. CONDITIONS** paragraph **B. Notice of Claims/Circumstances**) the receipt of notices from the Insurer, the payment of the premiums, the receipt of any return premiums that may become due under this Policy, and the agreement to and acceptance of endorsements. In the event of a disagreement between any **Insureds**, the **Named Insured** will have exclusive authority to act on behalf of all other **Insureds** with respect to negotiation of settlements and the decision to appeal or not to appeal any judgment.

P. Valuation

All premiums, limits, retentions, **Damages**, **Claim Expenses** and other amounts under this Policy are expressed and payable in United States of America currency. If any judgment, settlement or any part of **Damages** or **Claim Expenses** are expressed or calculated in any other currency, payment of such **Damages** or **Claim Expenses** due under this Policy will be made in the currency of the United States of America, at the rate of exchange published in The Wall Street Journal on the date the Insurer's obligation to pay such **Damages** or **Claim Expenses** is established, or, if not published on that date, on the date of next publication.

Q. Bankruptcy

Bankruptcy or insolvency of any **Insured** shall not relieve the Insurer of any of its obligations hereunder.

If a liquidation or reorganization proceeding is commenced by the **Named Insured** and/or any other **Insured Entity** (whether voluntarily or involuntarily) under Title 11 of the United States Code (as amended), or any similar state, local or foreign law (collectively "Bankruptcy Law") then, in regard to a covered **Claim** under this Policy, the **Insureds** hereby:

1. waive and release any automatic stay or injunction to the extent it may apply in such proceeding to the proceeds of this Policy under such Bankruptcy Law; and

2. agree not to oppose or object to any efforts by the Insurer or any **Insured** to obtain relief from any stay or injunction applicable to the proceeds of this Policy as a result of the commencement of such liquidation or reorganization proceeding.

R. Confidential Sources/Retraction of Matter

The **Insured's** rights under this Policy shall not be prejudiced by the **Insured's** refusal to reveal the identity of a confidential source or to disclose documents or information obtained by the **Insured** during the course of any **Occurrence**. The **Insured Entity** shall have full discretion to retract or clarify all **Matter**.

S. Trade and Economic Sanctions

This Policy does not provide coverage for **Insureds**, transactions or that part of **Damages** or **Claim Expenses** that is uninsurable under the laws or regulations of the United States concerning trade or economic sanctions.

T. Headings

The descriptions in the headings of this Policy are solely for convenience, and form no part of the terms and conditions of coverage.

IN WITNESS WHEREOF, the Insurer has caused this Policy to be signed by its Chairman and Secretary at Chicago, Illinois, but the same shall not be binding upon the Insurer unless countersigned by a duly authorized representative of the Insurer.

Chairman

Secretary

CANCELLATION/NON-RENEWAL ENDORSEMENT-CALIFORNIA

Wherever used in this endorsement: 1) Insurer means “we”, “us”, “our” or the “Company” as those terms are defined in the policy; and 2) Named Insured means the first person or entity named on the declarations page; and 3) “Insured(s)” means all persons or entities afforded coverage under the policy.

Any cancellation, non-renewal or termination provision(s) in the policy are deleted in their entirety and replaced with the following:

CANCELLATION AND NON-RENEWAL

A. CANCELLATION

1. The Named Insured may cancel the policy at any time. To do so, the Named Insured must return the policy to the Insurer or any of its authorized representatives, indicating the effective date of cancellation; or provide a written notice to the Insurer, stating when the cancellation is to be effective.

2. If the policy has been in effect for less than sixty (60) days and is not a renewal the Insurer may cancel the policy for any reason by mailing or delivering written notice to the Named Insured, at the last mailing address known to the Insurer, and the producer of record. The notice of cancellation will be provided at least thirty (30) days prior to the effective date of cancellation except that in the case of cancellation for nonpayment of premiums or for fraud the notice will be given no less than ten (10) days prior to the effective date of the cancellation.

3. If the policy has been in effect for more than sixty (60) days or if it is a renewal, effective immediately, the Insurer may not cancel the policy unless such cancellation is based on one or more of the following reasons:

   a. Nonpayment of premium, including payment due on a prior policy issued by the Insurer and due during the current policy term covering the same risks.
   b. A judgment by a court or an administrative tribunal that the Named Insured has violated any law of this state or of the United States having as one of its necessary elements an act which materially increases any of the risks insured against.
   c. Discovery of fraud or material misrepresentation by either of the following:
      (1) The Named Insured or Insured(s) or a representative of same in obtaining the insurance; or
      (2) The Named Insured or his or her representative in pursuing a claim under the policy.
   d. Discovery of willful or grossly negligent acts or omissions, or of any violations of state laws or regulations establishing safety standards, by the Named Insured or Insured(s) or a representative of same, which materially increase any of the risks insured against.
   e. Failure by the Named Insured or Insured(s) or a representative of same to implement reasonable loss control requirements which were agreed to by the Named Insured as a condition of policy issuance or which were conditions precedent to the use by the Insurer of a particular rate or rating plan, if the failure materially increases any of the risks insured against.
   f. A determination by the commissioner that the loss of, or changes in, the Insurer's reinsurance covering all or part of the risk would threaten the financial integrity or solvency of the Insurer.
   g. A determination by the commissioner that a continuation of the policy coverage would place the Insurer in violation of the laws of this state or the state of its domicile or that the continuation of coverage would threaten the solvency of the Insurer.
   h. A change by the Named Insured or Insured(s) or a representative of same in the activities or property of the commercial or industrial enterprise which results in a material added risk, a materially increased risk or a materially changed risk, unless the added, increased, or changed risk is included in the policy.

A notice of cancellation will be in writing and will be delivered or mailed to the Named Insured, at the last mailing address known to the Insurer, and the producer of record at least thirty (30) days prior to the effective date of cancellation. Where cancellation is for nonpayment of premium or fraud, notice shall be given no less than ten (10) days prior to the effective date of cancellation.

4. The notice will state the actual reason for the cancellation.

5. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.

6. If notice is mailed, proof of mailing will be sufficient proof of notice.

B. NON-RENEWAL

1. The Insurer can non-renew the policy by giving written notice to the Named Insured, at the last mailing address known to the Insurer, at least sixty (60) days but not more than one hundred twenty (120) days before the expiration date.

2. The notice of non-renewal will state the actual reason for non-renewal.

3. If notice is mailed, proof of mailing will be sufficient proof of notice.

4. A notice of non-renewal will not be required in any of the following situations:

   a. The transfer of, or renewal of, a policy without change in its terms or conditions or the rate on which the premium is based between insurers that are members of the same insurance group.
   b. The policy has been extended for ninety (90) days or less, if the notice required has been given prior to the extension.

   c. The Named Insured has obtained replacement coverage or has agreed, in writing, within sixty (60) days of the termination of the policy, to obtain that coverage.
   d. The policy is for a period of no more than sixty (60) days and the Named Insured is notified at the time of issuance that it may not be renewed.
   e. The Named Insured requests a change in the terms or conditions or risks covered by the policy within sixty (60) days prior to the end of the policy period.
   f. The Insurer has made a written offer to the Named Insured, within the prescribed time period, to renew the policy under changed terms or conditions or at a changed premium rate, where the increase is more than 25%. As used herein, “terms or conditions” includes, but is not limited to, a reduction in limits, elimination of coverages, or an increase in deductibles.

5. In the case of conditional renewal, failure of the Named Insured to satisfy conditions provided by the Insurer for renewal, by the expiration date of the policy or thirty (30) days after mailing or delivery of such notice, whichever is later, the conditional renewal shall be treated as an effective non-renewal.

C. CONDITIONAL RENEWAL

1. If the policy has been in effect for more than sixty (60) days or if the policy is a renewal, effective immediately no increase in premium, reduction in limits, or change in the conditions of coverage shall be effective during the policy period unless based upon one of the following reasons:

   a. Discovery of willful or grossly negligent acts or omissions, or of any violations of state laws or regulations establishing safety standards by the Named Insured or Insured(s) which materially increase any of the risks or hazards insured against.

b. Failure by the Named Insured or Insured(s) to implement reasonable loss control requirements which were agreed to by the Insured as a condition of policy issuance or which were conditions precedent to the use by the Insurer of a particular rate or rating plan, if the failure materially increases any of the risks insured against.

c. A determination by the commissioner that loss of or changes in an insurer's reinsurance covering all or part of the risk covered by the policy would threaten the financial integrity or solvency of the Insurer unless the change in the terms or conditions or rate upon which the premium is based is permitted.

d. A change by the Named Insured or Insured(s) in the activities or property of the commercial or industrial enterprise which results in a materially added risk, a materially increased risk, or a materially changed risk, unless the added, increased, or changed risk is included in the policy.

2. A written notice will be mailed or delivered to the Named Insured, at the last mailing address known to the Insurer, and the producer of record at least thirty (30) days prior to the effective date of any increase, reduction or change.

3. The notice will state the effective date of, and the reasons for, the increase, reduction or change

4. If notice is mailed, proof of mailing will be sufficient proof of notice.

All other terms and conditions of the policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy and expires concurrently with said Policy unless another effective date is shown below.

By Authorized Representative ____
(No signature is required if issued with the Policy or if it is effective on the Policy Effective Date)

BLANKET VICARIOUS LIABILITY FOR OTHER ENTITIES ENDORSEMENT

It is understood and agreed that the Policy is amended to include any entity the **Insured Entity** is required by contract to include as an insured for liability of such entity for an **Insured's Occurrences**. Such entity is insured under this Policy but solely to the extent that a **Claim** is made against it for **Occurrences** of an **Insured.**

Nothing herein shall serve to confer any rights or duties to such entity under this Policy, other than as provided herein.

There shall be no coverage afforded to such entity as a result of its independent **Occurrences.**

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.

CLAIMS MADE ENDORSEMENT

In consideration of the premium paid for this Policy, it is understood and agreed that the Policy is amended as follows:

1. The preamble is deleted in its entirety and replaced with the following:

   THIS IS A CLAIMS MADE POLICY AND, SUBJECT TO ITS PROVISIONS, APPLIES ONLY TO CLAIMS FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD AND REPORTED IN ACCORDANCE WITH SECTION V. B. NOTICE OF CLAIMS/CIRCUMSTANCES. CLAIM EXPENSES ARE WITHIN THE LIMIT OF LIABILITY. PLEASE REVIEW THE POLICY CAREFULLY AND DISCUSS THE COVERAGE WITH YOUR INSURANCE AGENT OR BROKER.

2. Section I. **INSURING AGREEMENT,** Paragraph **A. Media Liability** is deleted in its entirety and replaced with the following:

   The Insurer will pay on behalf of the **Insured** all sums, in excess of the retention and up to the applicable limit of liability, that the **Insured** shall become legally obligated to pay as **Damages** and **Claim Expenses,** including liability **Assumed Under Contract,** resulting from any **Claim** first made against the **Insured** during the **Policy Period**, or any Extended Reporting Period, if applicable, alleging an **Occurrence**, including but not limited to a **Claim** alleging that an **Occurrence** resulted in:

   1. any form of defamation or other tort related to disparagement or harm to the character, reputation or feelings of any person or organization, including but not limited to libel, slander, product disparagement or trade libel;

   2. any form of invasion, infringement or interference with rights of privacy or publicity, including but not limited to false light, public disclosure of private facts, intrusion and commercial appropriation of name or likeness;

   3. wrongful entry or eviction, trespass, eavesdropping or other invasion of the right of private occupancy;

   4. false arrest, detention or imprisonment, abuse of process or malicious prosecution;

   5. infringement of title, slogan, logo, trademark, trade name, trade dress, service mark or service name;

   6. infringement of copyright or any plagiarism, violation of moral rights (droit moral) or passing off, piracy, misappropriation of ideas under implied contract or other misappropriation of property rights, ideas or information;

   7. negligent or intentional infliction of emotional distress, outrage or outrageous conduct, or any prima facie tort;

   8. negligence in connection with the content of **Matter**;

   9. unfair competition or unfair trade practices alleged in conjunction with paragraphs **1.** through **8.** above, including but not limited to dilution, confusion, deceptive trade practices or unfair trade practices, civil actions for consumer fraud, false, disruptive or misleading advertising or misrepresentation in advertising; or

   10. negligent supervision of an employee alleged in conjunction with paragraphs **1.** through **8.** above;

   provided that:

   a. prior to the inception date of this Policy or the first such policy issued and continuously renewed by the Insurer, of which this Policy is a renewal, whichever is earlier;

      1. no **Executive Officer** knew or should have known that any such **Occurrence**, or **Related Occurrence**, might result in such **Claim**;

2. such **Occurrence** has not been the subject of any notice given under any prior policy;

b. such **Occurrence** occurred on or after the applicable **Retroactive Date** as set forth in the Declarations and prior to the end of the **Policy Period**; and,

c. the **Claim** is reported to the Insurer in accordance with Section **V. B. Notice of Claims/Circumstances.**

3. Section **II. DEFINITIONS** is amended to add the following new definitions:

Related Claims mean all **Claims** based upon or arising out of a single **Occurrence** or any **Related Occurrence**.

Retroactive Date means the following date: 1/27/2012.

4. Section **V. B. 1. Notice of Claim/Circumstances** is deleted in its entirety and replaced with the following:

1. Notice of Claim/Circumstances

a. Notice of Claim

The **Insured**, as a condition precedent to the obligations of the Insurer shall give written notice of any **Claim** to the Insurer as soon as reasonably practicable after any **Executive Officer** learns of such **Claim** but in no event later than ninety (90) days after termination or expiration of the **Policy Period** or any subsequent renewal **Policy Period** in an uninterrupted series of renewals, or prior to the expiration of the Extended Reporting Period, if applicable. Failure to give such notice as soon as reasonably practicable shall not invalidate coverage of such **Claim**, unless the failure to provide timely notice has prejudiced the Insurer or unless the notice is provided ninety (90) days after termination or expiration of the **Policy Period** or any subsequent renewal **Policy Period** in an uninterrupted series of renewals, or prior to the expiration of the Extended Reporting Period, if applicable

b. Notice of Circumstances

If during the **Policy Period** the **Insureds** first become aware of any facts or circumstances which may reasonably be expected to give rise to a **Claim** and during such **Policy Period** give written notice to the Insurer of:

1. the allegations anticipated as the basis of the potential **Claim** and the names of any potential claimants;

2. the identity of the specific **Insureds** allegedly responsible for such specific facts and circumstances;

3. the consequences which have resulted or may result from such specific facts and circumstances;

4. the amount of the potential monetary damages or the nature of non-monetary relief which may be sought in consequence of such specific facts and circumstances; and

5. the circumstances by which **Insureds** first became aware of such specific facts and circumstances,

then any such covered **Claim** which is subsequently made and which arises out of such facts and circumstances shall be deemed to have been first made against the **Insured** and reported to the Insurer by the **Insureds** at the time such written notice was received by the Insurer.

5. Section **IV.B. Each Occurrence Limits of Liability D. Retentions** and **E. Related Occurrences** are deleted in their entirety and replaced with the following:

B. Each Claim Limits of Liability

The amount set forth in the Declarations, in the Coverage Schedule, is the limit of liability for all **Damages** and **Claim Expenses** for each **Claim**.

D. Retentions

1. The retentions set forth in the Declarations shall apply for each **Claim.** The Insurer shall pay **Damages**, **Claim Expenses** and costs and expenses arising under Section I. B. of this Policy in excess of the applicable retention as such sums becomes due and payable to the **Insureds.**

2. The Insurer's obligation to pay **Damages**, **Claim Expenses** or costs and expenses arising under Section I. B. of this Policy is in excess of the applicable retention. The Insurer will have no obligation to pay all or any portion of the applicable retention. Should the Insurer, in its sole discretion, pay any retention, then the **Named Insured** shall have the obligation to reimburse the Insurer for such amounts.

3. In the event more than one retention applies, the maximum total retention amount applicable shall be the highest of such applicable retentions.

E. Related Claims

If **Related Claims** are subsequently made against the **Insured** and reported to the Insurer, all such **Related Claims**, whenever made, shall be considered a single **Claim** subject to the limit of liability applicable to the earliest such **Claim** first reported to the Insurer.

6. Section **V. CONDITIONS** is amended to add the following new conditions at the end:

- **Extended Reporting Period**

  1. **Automatic Extended Reporting Period**

     The **Named Insured** shall have the right to a period of sixty (60) days following the effective date of such cancellation or non-renewal, in which to give written notice to the Insurer of **Claims** first made against the **Insured** during said sixty (60) days period for any **Wrongful Act** committed prior to the end of the **Policy Period** and otherwise covered by this Policy.

  2. **Optional Extended Reporting Period**

     If the **Named Insured** or Insurer cancels or non-renews this Policy, the **Named Insured** shall have the right to purchase, upon payment of an additional premium, an extension of this Policy, for any **Claim** first made or deemed to be first made during such period for **Wrongful Acts** committed before the earlier of the end of the **Policy Period** or the effective date of any **Takeover.**
     This period shall be referred to as the "Optional Extended Reporting Period".

  3. **Payment of Extended Reported Period Premium**

     As a condition precedent to the right to purchase the Optional Extended Reporting Period, the total premium for this Policy must have been paid. The right to purchase such Optional Extended Reporting Period shall end unless the Insurer receives written notice of the **Named Insured's** election to purchase such Optional Extended Reporting Period and full payment of the premium for such period within sixty (60) days after the end of the **Policy Period**.

4. Non-Cancelable/Premium Fully Earned

If the Optional Extended Reporting Period is purchased, it is non-cancelable and the entire premium shall be deemed fully earned at its commencement without any obligation by the Insurer to return any portion thereof.

5. No Separate Limit

There is no separate or additional limit of liability for any Extended Reporting Period.

All other terms and conditions of the Policy remain unchanged.

This endorsement, which forms a part of and is for attachment to the Policy issued by the designated Insurers, takes effect on the effective date of said Policy at the hour stated in said Policy, unless another effective date is shown below, and expires concurrently with said Policy.